TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Sharon Bridges – Chair ***Phil Blaisdell*** – Vice Chair
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Dick Hassberger – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
Deb Sherrod – Recording Secretary

Regular Meeting – Tuesday, September 13, 2022, at 7:01 pm. Called to order at 7:00 pm by Chair Bridges.

Roll Call:
Present – Bridges, Blaisdell, McCaslin, , Szczepanski, Tobin, Hassberger, Sherrod
Absent –Trim
Public – 15 in person

Public Hearing: Chair Bridges opened the public hearing for the purpose of hearing the request from the Neills for rezoning from R1 to R2. Bridges explained the procedure of addressing the chair, stating name and address when making public comment.

Tara Hovey, attorney for the Neills, explained that the property purchased was zoned R2 at the time of purchase, but that changed some time since 1976. They are asking to have it rezoned back to R2 as prior to 1976 so that they can build on the lot in question. They want to purchase a part of 300-011 across the street from their own property at 300-04 to build a garage on it. In order for this to be possible, they need the change in zoning to have enough property size to meet setbacks. Also, this would make the property in question contiguous so they don't need to build a residence that they don't need.

McCaslin, Blaisdell, and Bridges asked clarifying questions.

Currently they have a purchase agreement in answer to Tobin's question. They explained that they don't own it yet, but Hovey explained that with a purchase agreement, they have a vested interest in the matter of rezoning.

Mr. Neill went on to explain what the original owner had planned in developing this property.

Szczepanski asked if the current piece would be buildable with the change in rezoning. Hovey answered in the affirmative.

Bridges clarified that they don't want to buy the whole lot as that would put the owner out of compliance with his own pole building. Bridges went on to ask if it was changed to R2, they could purchase the whole acre if they wanted to. The answer was yes, but they had run into problems with other factors.

The property in question, 300-11, needs to be entirely zoned as R2 in order to be used in this manner. The Neills currently own 300-04.

Further discussion continued to make sure the commissioners understood the exact location, shape, and size of the properties in question and exactly what the Neills are asking for.

McCaslin speculated that perhaps these properties were mismarked on the map during the changes when the ordinance was redone in 2017. She also voiced her opinion that possibly the entire section of R1 properties should be rezoned to R2. She wants to go back to check if the current zoning map is incorrect.

McCaslin asked if the Neills could wait until more information can be found on when this zoning happened. Blaisdell said that he is in favor of consistency and that the whole thing should be rezoned to R2 rather than have spot zoning which looks bad. Szczepanski agreed.

Jim Firlit spoke; he owns across the street and said that he and other property owners nearby are in favor of this change, 298-11, 12, & 13. He also wrote an email about this.

Bridges asked if the commissioners want to do more research on this matter before making a decision.

Veronica Jamieson asked about any negative input via mail/email. She also lives on West Lake George.

Tobin stated that the consensus is that this zoning is wrong and needs to be addressed.

Bridges explained the procedure going forward. McCaslin agreed to search out and study the old zoning maps to see where the possible mistake was.

The decision was made to schedule another public hearing to change the whole portion of West Lake George St. from R1 to R2 to be held at the November planning meeting.

Bridges closed the public hearing at 7:48 pm. and reopened the regular Planning Commission meeting.

Approval of Minutes:
Approval of the regular meeting minutes of August 9, 2022. Tobin made a motion to approve the minutes as presented; McCaslin seconded. Motion passed.

Approval of Agenda: Accepted with no amendments.

Zoning Administrator's Report: See Attachment #1
A question was asked about the Schubert appeal and one other item.

Building Inspector's Report: See Attachment #3
There were no questions or comments.

Ordinance Enforcement Report: See Attachment #2
No questions or comments.

Public Comment: None

Old Business:

1. Continued Master Plan Review: Bridges said that Clerk Majewski has received one bid on professional work on the master plan as well as the parks and recreation plan, and another bid has been requested. Blaisdell has some information about other companies that he will share with Majewski.

2. Discussion of Pending Approved Ordinance Matters: Not ready for further action.

New Business: None

Announcements: Next Regular Meeting will be Tuesday, October 11, at 7:00 pm.

Motion by McCaslin to adjourn the meeting; seconded by Blaisdell. Motion passed with all in favor. Meeting adjourned at 8:06 p.m.

Respectfully Submitted,

Gary Szczepanski, Secretary

Attachment #1

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
Zoning Department phone: [313] 530-2306 website: www.lincolntwp.com
e-mail: dickhassbergerl@aol.com

Zoning Administrator: ***Dick Hassberger***

Monthly Zoning Permit Report - August, 2022

Received & Approved

010-720-757-00	4790 Lake Road	Enclose Existing Space in Access. Bldg.
010-100-004-00	153 Arbor Drive	Landscape/Hardscape
010-720-588-00	5160 Badger Court	Accessory Building
010-500-047-00	4831 Hemlock	Accessory Building
010-631-004-00	1165 Birch Street	Accessory Building
010-760-033-00	2925 Ojibway Trail	Detached Garage

Applications Denied

None

RV & Temp Storage on Vacant Lot - Approved

010-746-021-00	Teaberry Lane	Seasonal RV
010-746-108-00	Teaberry Lane	Seasonal RV
010-720-566-00	Beechwood Ct	Seasonal RV
010-720-718-00	Oak Run	Seasonal RV
010-700-563-00	Beech Lane	Seasonal RV
010-720-728-00	Lake Road	Seasonal RV
010-700-435-00	Fawn Terrace	Seasonal RV
010-746-012-00	Hemlock Lane	Seasonal RV

Pending

010-400-001-00	101 Maple St.	Zoning Violation – Fence ZBA Scheduled on 08-10-2022-Appeal Denied
010-016-300-04 010-016-300-11	W. Lake George Dr	Petition for Zoning Map Change, R1 to R2 Public Hearing scheduled for 09-13-22

Violations

010-746-021-00	Teaberry Ln	No Seasonal RV Permit	Letter-Resolved
010-746-108-00	Teaberry Ln	No Seasonal RV Permit	Letter-Resolved
010-746-054-00	Teaberry Ln	No Seasonal RV Permit	Letter-Pending
010-700-480-00	Oak Run	RVs Beyond # Allowed	Letter-Resolved
010-100-004-00	Arbor Drive	Construction without Permit	Letter-Resolved
010-289-005-00	Arbor Drive	Acc. Building without Permit	Letter-Resolved
010-720-718-00	Oak Run	No Seasonal RV Permit	Letter-Resolved
010-720-728-00	Lake Rd	No Seasonal RV Permit	Letter-Resolved
010-700-564-00	Beech Lane	No Seasonal RV Permit	Letter-Resolved
010-700-566-00	Beechwood Ct	No Seasonal RV Permit	Letter-Resolved
010-720-693-00	Elm Run	No Seasonal RV Permit	Letter-Resolved
NEW			
010-746-012-00	Hemlock Lane	No Seasonal RV Permit	Letter-Resolved
010-720-677-00	White Birch Lane	No Seasonal RV Permit	Letter-Open
010-720-678-00	Elm Run	No Seasonal RV Permit	Letter-Open
010-660-048-00	Squirrel Run	No Seasonal RV Permit	Letter-Open
010-660-012-00	White Birch Lane	No Seasonal RV Permit	Letter-Pending
010-660-013-00	White Birch Lane	No Seasonal RV Permit	Letter-Pending
010-660-018-00	Squirrel Run	No Seasonal RV Permit	Letter-Open
010-500-054-00	Lakewood Drive	No Seasonal RV Permit	Letter-Open
010-324-003-00	Lake Drive	No Zoning Permit-Deck Co	Letter-Work Halted-Permit Pending
010-635-001-00	Maple Street	No Seasonal RV Permit	Letter-Open

Notes:
Resolved; matter was resolved to ZA and property owners' satisfaction

Letter-Open: Letter sent, no additional contact at this point

Letter-Pending: Contact has been made and arrangements to resolve are in file

Letter Resolved: Violation has been resolved with proper application and approval.

Attachment #2

Lincoln Township
P.O. Box 239
Lake George, MI 48633

August 2022 Ordinance Report
Debra Trim – Ordinance Enforcement Officer
Ordinance103@gmail.com

Complaint 3181 Tice Trail dogs barking at night, loose to wander. 8-19-22 Sent letter to owner and copy of Ordinance. 8-31-22 owner left message and am trying to get back with him. On going.

Complaint 486 W Shingle Lake Dr numerous dogs barking at night coming into neighbors yard. Drove to owners home to speak with her on two different occasions, no one came to the door. Will be sending a letter with copy of our Ordinance. On going.

Complaint 462 W Shingle Lake Dr Broken furniture, yard debris, large fallen tree. 8-1322 drove by took pictures, hard to see as grass so tall. 8-18-22 Sent letter and copy of Ordinance. Owner responded by email 8-27-22 that work will be done. Drove by 8-31-22 saw clean up has started. On going.

Complaint 454 Park Dr 2 unplated trailers. Drove by took picture and sent letter 7-25-22. 8-1-22 both trailers are plated. Resolved

Complaint 648 W Shingle Lake Dr Damaged roof from fallen tree. Had tarped and stated repairs in Spring. 7-6-22 sent final notice and 7-18-22 received email showing contractors that do not have the available workers or time this year. Is consulting other sources. Email from owner along with copy of estimate from contractor dated 8-24-22. Owner states that work will begin in 6-8 weeks. (9-6-22 In response we have requested a signed contract with starting and completion dates). On going

Complaint 719 Pine 7-20-22 Multiple vehicles, tires and junk. Drove

by took picture and sent letter 7-26-22. Drove by 8-30-22 yard cleaned up. Resolved.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, MI 48633-0239 phone: [989] 588-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for June, July & August, 2022

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PB22-00299	010-460-023-00	412 Shingle Lake Dr.	New Roof & Final
PB22-00310	010-560-135-00	742 Hill St.	New Roof
PB22-00344	010-125-044-00	531 South St.	Roof Mounted Solar Array
PB22-00371	010-125-039-00	481 South St.	Lean-to
PB22-00372	010-482-002-00	682 E. Forest	New Roof with height
PB22-00374	010-006-400-04	910 S. Bringold	Carport
PB22-00376	010-800-059-00	1435 Arbor Dr.	Pole Barn
PE22-00343	010-700-547-00	5073 Lake Rd.	Service Upgrade
PR22-00354	010-010-200-18	2249 W. Monroe	Upgrade & Generator Transfer Switch
PE22-00367	010-680-232-01	5897 Oak Run	Service Upgrade
PE22-00368	010-740-816-00	5223 Cherry Rd.	Service Upgrade & RV Park Site
PE22-00371	010-700-574-00	1580 Beech Ln.	Upgrade & RV Park Site
PE22-00376	010-640-003-00	472 W. Shingle Lake Dr.	Service Upgrade
PE22-00393	010-720-750-00	4731 Lake Rd.	Service Upgrade
PE22-00403	010-289-015-00	789 Arbor Dr.	Service Upgrade & Generator
PE22-00419	010-746-337-00	4924 Pine Run	Service Upgrade
PE22-00420	010-482-002-00	682 E. Forest	Service Upgrade & Lighting
PM22-0188	010-010-200-18	2249 W. Monroe	Generator Gas Line
PM22-0206	010-289-015-00	789 Arbor	Generator Gas Line
PM22-0208	010-640-003-00	472 W. Shingle Lake Dr.	Generator Gas Line
PM22-0209	010-500-063-00	5904 Browns Rd.	Furnace & Water Heater & Vents